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Plaintiff, In Pro Per

**SUPERIOR COURT OF THE STATE OF CALIFORNIA
COUNTY OF SAN FRANCISCO**

**FRANCISCUS DYLAN ROSARIO,
PLAINTIFF,**

v.

Subhi Abdelhalim; CSAA Insurance Exchange; Phillips,
Spallas & Angstadt LLP; Priya D. Navaratnasingham;
Alberto Reyna; Michael R. Chambers; Carbone, Smith &
Koyama; and Does 1 through 50, inclusive;

DEFENDANTS

Case No.: CGC-25-631801

**NOTICE OF MOTION AND MOTION
FOR ORDER PERMITTING
SPECIFIED DISCOVERY;
MEMORANDUM OF POINTS AND
AUTHORITIES; DECLARATION OF
PLAINTIFF; [PROPOSED] ORDER**

(Code Civ. Proc., § 425.16(g); Cal. Rules of Court, rule
3.1110)

Anti-SLAPP Hearing:

Date: May 12, 2026

Time: 9:30 a.m.

Dept.: 301

Judge: Hon. Christine Van Aken

Complaint filed: Dec. 23, 2025

FAC filed: Feb. 25, 2026

1 **NOTICE OF MOTION AND MOTION**

2 TO ALL PARTIES AND THEIR ATTORNEYS OF RECORD:

3 PLEASE TAKE NOTICE that on a date to be set by the Court on ex parte application for an order
4 shortening time (requested hearing: **April 30, 2026 or as soon thereafter as the matter may be**
5 **heard**, Department 301), Plaintiff Franciscus Dylan Rosario will and hereby does move this Court,
6 pursuant to Code Civ. Proc., § 425.16(g), for an order **permitting specified discovery** prior to the
7 hearing on Defendants' Special Motion to Strike (scheduled for May 12, 2026).

8 Plaintiff seeks an order permitting only the following narrowly-tailored discovery, and no other:

- 9 1. One limited **deposition of declarant Tyler J. O'Connell**, Esq., limited to three topics and a
10 **two-hour** on-the-record cap: (i) foundation for each exhibit referenced in his April 9, 2026
11 anti-SLAPP declaration and April 13, 2026 demurrer declaration; (ii) the basis for his as-
12 serted personal knowledge of statements attributed to Plaintiff; and (iii) authentication of
13 communications quoted in those declarations.
- 14 2. One set of **Requests for Production, not to exceed eight (8) requests**, limited to documents
15 **expressly referenced or incorporated** in the O'Connell declarations. No other discovery is
16 sought.

17 The motion is made on the grounds that (a) good cause exists under Code Civ. Proc., § 425.16(g);
18 (b) the specified discovery is narrowly tailored to evidence necessary to rebut Defendants' prong-
19 two showing; (c) the discovery can be completed in advance of the May 12, 2026 hearing without
20 continuance; and (d) no discovery will be served unless and until the Court grants this motion,
21 preserving full compliance with the Code Civ. Proc., § 425.16(g) stay.

22 The motion is based upon this Notice, the Memorandum of Points and Authorities, the Declaration
23 of Plaintiff (with proposed RFPs and proposed deposition notice as Exhibits A and B), the [Pro-
24 posed] Order submitted herewith, the pleadings and papers on file, and such further evidence and
25 argument as may be presented at the hearing.

MEMORANDUM OF POINTS AND AUTHORITIES

I. Introduction

The anti-SLAPP discovery stay of Code Civ. Proc., § 425.16(g) “may be lifted for good cause shown.” The governing standard is well settled: Plaintiff must identify (a) specific discovery, (b) tied to a specific prong-two element, (c) that cannot be obtained by other means, and (d) that will not delay the hearing. (*Schaffer v. City and County of San Francisco* (2008) 168 Cal.App.4th 992, 1010–1011; *1-800 Contacts, Inc. v. Steinberg* (2003) 107 Cal.App.4th 568, 593–594; *Lafayette Morehouse, Inc. v. Chronicle Publishing Co.* (1995) 37 Cal.App.4th 855, 867–868.) Plaintiff’s request is the narrowest viable ask — one capped deposition on three authentication topics and eight document requests limited to the four corners of the moving declarations — and satisfies each element.

II. Good Cause: The *Schaffer* / *1-800 Contacts* / *Lafayette Morehouse* Standard

A. Specific discovery, tied to a specific prong-two element.

Defendants’ Special Motion to Strike is founded on the Declaration of Tyler J. O’Connell, which purports to authenticate a set of exhibits and attribute statements to Plaintiff. Plaintiff’s prong-two burden is to make a prima facie showing of minimal merit by “competent and admissible evidence.” (*Sweetwater Union High School Dist. v. Gilbane Building Co.* (2019) 6 Cal.5th 931, 949.) Where defendants have supplied the record themselves through a single declaration, **foundation, personal knowledge, and authentication** of that declaration are directly dispositive of the competency of the opposing evidence. The discovery sought goes to those three elements and no other.

B. Not obtainable by other means.

The only source of the foundation, personal-knowledge, and authentication facts for the O’Connell declarations is Mr. O’Connell himself and the four-corner universe of documents he incorporated. Plaintiff has no independent access to defense counsel’s internal records or the provenance of the attached exhibits. (Plaintiff Decl., ¶¶ 6–9.)

1 **C. Will not delay the May 12 hearing.**

2 The deposition is capped at two hours; the RFPs are capped at eight. If ordered on April 30 or May
3 1, production and deposition can be completed by May 8, 2026, four days before the hearing —
4 without continuance. Plaintiff concurrently applies ex parte for an order shortening time to ensure
5 the schedule holds.

6 **D. The request is narrowly tailored and proportional.**

7 *Schaffer* and *1-800 Contacts* emphasize **proportionality** as the touchstone: broad claim-handling
8 discovery would invite denial; four-corner authentication discovery does not. Plaintiff does **not**
9 seek a PMK deposition, broad claim-handling RFPs, RFAs, or third-party subpoenas. The motion
10 is deliberately confined to the narrowest item of discovery necessary to contest admissibility of the
11 moving papers. (*Lafayette Morehouse*, 37 Cal.App.4th at pp. 867–868 [narrowly tailored discovery
12 satisfies good cause]).

13 **III. Stay Compliance**

14 No discovery has been or will be served before this Court rules on this motion. The proposed RFPs
15 and deposition notice (Exhibits A and B to the Declaration of Plaintiff) are **conditional** upon the
16 Court’s Code Civ. Proc., § 425.16(g) order. (Plaintiff Decl., ¶ 10.) This posture squarely avoids
17 any Code Civ. Proc., § 425.16(g) violation.

18 **IV. Conclusion**

19 The Court should grant the motion and enter the accompanying [Proposed] Order permitting the
20 specified discovery on the timeline proposed.

1 **DECLARATION OF PLAINTIFF FRANCISCUS DYLAN ROSARIO**

2 I, Franciscus Dylan Rosario, declare:

- 3 1. I am the Plaintiff in this action, appearing in pro per. I have personal knowledge of the matters
4 stated herein and, if called as a witness, could and would testify competently to them.
- 5 2. On April 9, 2026, Defendants filed a Special Motion to Strike supported by the Declaration
6 of Tyler J. O’Connell, Esq. The motion is presently set for hearing on May 12, 2026, at 9:30
7 a.m., in Department 301.
- 8 3. The O’Connell Declaration attaches a set of exhibits and attributes statements to me. It is the
9 principal evidentiary vehicle for Defendants’ prong-two showing.
- 10 4. My prong-two showing requires competent, admissible evidence. To meet that burden, I
11 must be able to test the foundation, personal knowledge, and authentication of the O’Connell
12 Declaration.
- 13 5. I have no means to obtain foundation and authentication facts concerning Mr. O’Connell’s
14 declarations other than (a) a short, topic-limited deposition of Mr. O’Connell, and (b) produc-
15 tion of documents expressly referenced or incorporated in his declarations.
- 16 6. The scope I propose is capped: **2-hour deposition**, three topics; **8 document requests**, each
17 tied to documents already cited or incorporated in the O’Connell declarations. A true and
18 correct copy of my proposed RFPs is attached as **Exhibit A**. A true and correct copy of my
19 proposed deposition notice is attached as **Exhibit B**.
- 20 7. If ordered on April 30 or May 1, 2026: RFP responses are due within 20 days, which I will
21 agree to shorten to 10 calendar days; the deposition can be completed on or before May
22 8, 2026. This leaves at least four court days before the May 12 hearing and requires no
23 continuance.
- 24 8. I have not propounded, and will not propound, any discovery of any kind until this Court
25 enters an order under Code Civ. Proc., § 425.16(g) authorizing the specified discovery. No
26 discovery has been served during the Code Civ. Proc., § 425.16(g) stay.
- 27 9. The discovery I seek is not duplicative of anything produced in the Case No. CGC-25-631802
28 matter; the O’Connell declarations filed in each case are distinct documents with distinct

1 exhibits.

2 10. All discovery referenced in Exhibits A and B is conditional on the Court's order; no document
3 request or deposition notice will be served unless and until the Court grants this motion.

4 I declare under penalty of perjury under the laws of the State of California that the foregoing is
5 true and correct. Executed this 24th day of April, 2026, at Rohnert Park, California.

Dated: April 24, 2026



/s/ Franciscus Dylan Rosario

FRANCISCUS DYLAN ROSARIO

Plaintiff, In Pro Per

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EXHIBIT A — PROPOSED REQUESTS FOR PRODUCTION (CONDITIONAL; NOT SERVED)

Set One; limited to eight requests; directed to defendant's counsel of record or custodian of the O'Connell Declaration exhibits:

1. All documents expressly identified, quoted, or referenced by exhibit number in the Declaration of Tyler J. O'Connell dated April 9, 2026 in support of the Special Motion to Strike.
2. All documents reflecting the chain of custody, source, or provenance of each exhibit attached to the O'Connell Declaration.
3. All communications between Mr. O'Connell and any person concerning the preparation of the O'Connell Declaration (excluding attorney work-product and privileged communications; privilege log to be produced in lieu).
4. All documents supporting Mr. O'Connell's assertion of personal knowledge of statements attributed to Plaintiff in the O'Connell Declaration.
5. All documents in which Plaintiff is quoted and which Mr. O'Connell relies on for the statements attributed to Plaintiff in the O'Connell Declaration.
6. All unredacted versions of any exhibit attached in redacted form to the O'Connell Declaration.
7. All metadata (hash, timestamps, author) for each electronic exhibit attached to the O'Connell Declaration.
8. All documents demonstrating custodial authority to authenticate the exhibits attached to the O'Connell Declaration under Evid. Code, §§ 1400–1402.

EXHIBIT B — PROPOSED DEPOSITION NOTICE OF TYLER J. O'CONNELL (CONDITIONAL; NOT SERVED)

Deponent: Tyler J. O'Connell, Esq.; location: remote via Zoom or counsel's office; duration cap: **2 hours on the record**; topics limited to the following three:

1. Foundation for each exhibit attached to or referenced in the declarant's April 9, 2026 and April 13, 2026 declarations.
2. The basis for the declarant's asserted personal knowledge of each statement attributed to

Plaintiff in those declarations.

3. Authentication of each communication quoted in those declarations under Evid. Code, §§ 1400–1402.

No PMK designation is sought; no third-party subpoenas are contemplated. This notice will not be served unless and until the Court enters the proposed order.

[PROPOSED] ORDER PERMITTING SPECIFIED DISCOVERY (CCP §425.16(G))

The Court, having considered Plaintiff's Motion for Order Permitting Specified Discovery under Code of Civil Procedure section 425.16(g), the papers in support and opposition (if any), and the arguments of the parties, and **finding good cause**, hereby **ORDERS**:

1. Plaintiff's Motion for Order Permitting Specified Discovery is **GRANTED**.
2. Plaintiff may serve one set of Requests for Production, not to exceed eight requests, limited to documents expressly referenced or incorporated in the April 9, 2026 and April 13, 2026 Declarations of Tyler J. O'Connell. Responses shall be served within _____ calendar days of service.
3. Plaintiff may take the deposition of Tyler J. O'Connell, limited to three topics (foundation, personal knowledge, authentication), capped at two hours on the record, to be completed on or before May 8, 2026.
4. No other discovery is authorized under this Order. The Code Civ. Proc., § 425.16(g) stay remains in place as to all other discovery.
5. This Order does not alter the May 12, 2026 hearing on the Special Motion to Strike.

Dated: _____

Hon. Christine Van Aken
Judge of the Superior Court